

HEADNOTE

“Parties are under an obligation to use the CMS and the dedicated workflows in the CMS to file their submissions (see e.g. Rule 4.1 RoP). It is the sole responsibility of the parties that this is done properly and timely. The Court will try to be helpful where possible in resolving CMS related issues. Submissions and correspondence outside of the CMS should be limited to an absolute minimum. The notification generated by the system is the "means of electronic communication" as meant in Rule 278.1 RoP or, as the case may be, the "relevant electronic message" as meant in Rule 271.6 RoP.”

COURT
Central Division in Munich

PROCEEDINGS
Action for revocation

PATENT
EP3056563

Method of producing retinal pigment
epithelial cell

KEYWORDS

Rule 4.1 RoP. Case Management System (...)

service of pleadings by means of electronic...

Rule 4 Lodging of documents**SUMMARY**

The Central Division in Munich issued a decision on an action for revocation. The patent at issue relates to a method of producing retinal pigment epithelial cells. According to the headnotes of the decision, parties must use the Case Management System and its designated workflows to file all submissions, and it is entirely their responsibility to do so correctly and within the required timeframes. The Court will make reasonable efforts to assist parties with technical issues related to the Case Management System, but submissions and correspondence outside this system should be kept to an absolute minimum. System-generated notifications constitute the official means of electronic communication under the relevant procedural rules.